

		service attached to the petition shows the petition was served by email which does not comply with the requirements of section 413.10, et. seq. Service of summons by email is permissible only when authorized by a court order and there is no such order in this case. Furthermore, there is no proof of service showing notice of this hearing was served on Respondent by any means. Based on the foregoing, the hearing on the petition is CONTINUED as set forth above to allow for proper service. Petitioner's counsel is ordered to give notice of this ruling.
2.	<i>DeJesse vs. Rivera</i> <i>2025-01506697</i>	Before the court is the unopposed petition and motion to confirm arbitration award filed by petitioner Jeffrey DeJesse (Petitioner). As more fully set forth below, the motion is GRANTED. Petitioner's motion meets the requirements of Code of Civil Procedure sections 1285 and 1258.4. The petition attaches a copy of the parties' arbitration agreement, identifies the arbitrator, and attaches a copy of the arbitrator's final award, which awarded Petitioner the sum total of \$81,925.00 in attorney fees and costs, comprised of \$75,300.00 in attorney fees, and \$6,625.00 in costs against respondents Reynaldo Rivera and MRV Marketing, LLC (collectively, Respondents). (DiMercurio Decl. ¶¶ 8-10, Ex. B.) As the Motion complies with the requirements and has been duly served and filed, the court must confirm the award as made unless Respondents identify and establish a basis to vacate or correct the award. (Code Civ. Proc., § 1286.) Respondents filed no opposition to the petition or motion and did not move to correct or vacate the award. In fact, default has been entered in these proceedings against Respondents due to their failure to respond. By not responding to the petition and motion, Respondents are deemed to have admitted all the allegations of the petition and motion. (Code Civ Proc., § 1290.) Petitioner also requests post-award, prejudgment interest, which is permissible pursuant to Civil Code section 3287, subdivision (a). (<i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27.) The prejudgment interest on the \$75,300 award from the date of entry on June 3, 2025, through to the date of this motion hearing totals \$8,596.51. Based on the foregoing, the motion is GRANTED, the arbitration award is confirmed, and judgment shall be entered in favor of Petitioner and against Respondent in the

		total amount of \$90,522, which comes from the \$81,925.00 arbitration award plus \$8,596.51 in interest. Counsel for Petitioner is ordered to prepare and file a proposed judgment based on the above and to give notice of this ruling.
3.	<i>Stout Risius Ross, LLC vs. Omega Accounting Solutions, Inc.</i> 2026-01547660	Before the court is a petition to confirm contractual arbitration award filed on February 11, 2026, by petitioner Stout Risius Ross, LLC (Petitioner). By this petition, Petitioner seeks to confirm the arbitration award issued in its favor and against respondent Omega Accounting Solutions, Inc. by arbitrator Hon. Glenda Sanders (Ret.) on January 20, 2026. As set forth below, the petition is GRANTED. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must “(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” (Code Civ. Proc., § 1285.4.) Pursuant to Code of Civil Procedure section 1286, if a petition to confirm an arbitration award is duly served and filed, “the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” Here, Petitioner duly served and filed its petition to confirm the arbitration award, and the petition complies with Code of Civil Procedure section 1285.4 by setting forth the name of the arbitrator—Hon. Glenda Sanders (Ret.) of JAMS—and attaching a copies of (1) the parties’ agreement which includes an arbitration clause and (2) the arbitration award. Respondent argues the petition fails to comply with Code of Civil Procedure section 1288.4, which requires a 10-day waiting period after service of the award on any petitioner, because Petitioner filed the petition on February 11, 2026, before serving the award on Respondent on March 24, 2026. Respondent misreads the statute. Under Code of Civil Procedure section 1283.6, it is the duty of the arbitrator to serve a signed copy of the award on each party to the arbitration. Code of Civil Procedure section 1288.4 provides: “No petition may be served and filed